

M/S M S Enterprises v. State of U.P.

Allahabad High Court · Division · 21 October 2021 · WRIT - C No. 24012 of 2021 · **Writ disposed; objection to provisional assessment to be decided; coercive action stayed.**

HEADNOTE

Where a consumer has already filed a timely objection under the U.P. Electricity Supply Code, 2005 to a provisional assessment of electricity dues, the High Court will not keep the writ pending. It directs the assessing officer to decide that objection within a time-bound period and restrains coercive recovery until the objection is decided or the stipulated period expires, whichever is earlier.

FACTUAL SUMMARY

The respondents raised a provisional assessment dated 13 August 2021 claiming Rs. 25,16,876 as electricity dues from M/s M.S. Enterprises. The petitioners filed an objection on 21 August 2021, within the period contemplated under the U.P. Electricity Supply Code, 2005. They then invoked the High Court's writ jurisdiction. Counsel for both sides were heard. The assessing authority had not yet decided the objection, and no counter affidavit had been called.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

objection to provisional assessment

HOLDING

A timely objection to a provisional assessment of electricity dues under the Supply Code is to be decided by the assessing officer. The writ is disposed of with a direction that respondent no. 3 decide the objection dated 21.8.2021 preferably within one month, and no coercive measures are to be adopted for one month or until that decision, whichever is earlier. ¶ 1

PRINCIPLE TAGS

pending-objection-to-provisional-assessment-to-be-decided

The petitioners had objected in time to a provisional demand of Rs. 25,16,876. The Court directed respondent no. 3 to decide that objection and withheld coercive recovery pending that decision. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PROVISIONAL ASSESSMENT OF RS. 25,16,876

The Court did not examine the correctness of the demand; it only directed decision of the pending objection. ¶ 1